

Opinion of the Court

other way, “the most important question is who should decide whether to provide for a damages remedy, Congress or the courts?” *Hernández*, 589 U. S., at — — — (internal quotation marks omitted). If there is a rational reason to think that the answer is “Congress”—as it will be in most every case, see *Ziglar*, 582 U. S., at 135 —no *Bivens* action may lie. Our cases instruct that, absent utmost deference to Congress’ preeminent authority in this area, the courts “arrogat[e] legislative power.” *Hernández*, 589 U. S., at —.

To inform a court’s analysis of a proposed *Bivens* claim, our cases have framed the inquiry as proceeding in two steps. See *Hernández*, 589 U. S., at —. First, we ask whether the case presents “a new *Bivens* context”—*i. e.*, is it “meaningful[ly]” different from the three cases in which the Court has implied a damages action. *Ziglar*, 582 U. S., at 139. Second, if a claim arises in a new context, a *Bivens* remedy is unavailable if there are “special factors” indicating that the Judiciary is at least arguably less equipped than Congress to “weigh the costs and benefits of allowing a damages action to proceed.” *Ziglar*, 582 U. S., at 136 (internal quotation marks omitted). If there is even a single “reason to pause before applying *Bivens* in a new context,” a court may not recognize a *Bivens* remedy. *Hernández*, 589 U. S., at —.

While our cases describe two steps, those steps often resolve to a single question: whether there is any reason to think that Congress might be better equipped to create a damages remedy. For example, we have explained that a new context arises when there are “potential special factors that previous *Bivens* cases did not consider.” *Ziglar*, 582 U. S., at 140. And we have identified several examples of new contexts—*e. g.*, a case that involves a “new category of defendants,” *Malesko*, 534 U. S., at 68; see also *Ziglar*, 582 U. S., at 135–136 —largely because they represent situations in which a court is not undoubtedly better positioned than Congress to create a damages action. We have never of-